

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NICCOLO FLORIANI,

Petitioner

VS.

CASEY FLORIANI,

Respondent

) Case Number: FDI-25-802058

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR SPOUSAL SUPPORT AND COMPELL FINANCIAL DISCLOSURES;
REQUEST FOR ORDER: CHILD SUPPORT, SEEK WORK ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Niccolo Floriani (Father) and Respondent Casey Floriani (Mother) married on 5/3/2021 and separated on 9/3/2025, for a marriage of 4 years and 4 months. The parties have two minor children, Luca (DOB: 11/26/2021, age 4) and Matteo (DOB: 8/6/2023, age 2). Father is represented by attorney Constantine Zhukovsky. Mother is represented by attorney Zeena Alchokhachi.
- 2) Related Case No. FDV-25-818707
 - a. On 10/20/2025, Mother filed a Request for Domestic Violence Restraining Order seeking protection for herself and the parties' minor children against Father.
 - b. On 10/21/2025, the Court granted a Temporary Restraining Order protecting Mother and the parties' two children against Father, ordering Father to move-out of the parties' home, awarding Mother sole legal and physical custody of the parties' children, and ordering no visitation for Father.

- 1 c. On 11/20/2025, an Amended Temporary Restraining Order was entered which maintains
2 the prior order and adds a requirement for Father to pay \$2,800 per month for rent for the
3 former marital residence.
- 4 d. On 12/24/2025, the Court awarded to Father two hours per week of supervised visitation
5 at Rally.
- 6 e. On 2/18/2026, the Court vacated the order requiring Father to pay the rent for the
7 residence where Mother and the children reside because Father's mother financially
8 supports Father and the Court found it could not order a third party to pay the rent for
9 Mother's residence.
- 10 f. On 4/30/2026, following several days of trial, Judge Wiley took Mother's Request for a
11 DVRO under submission. The submission remains pending.
- 12 g. There is a hearing currently set for Wednesday, 7/1/2026 at 8:30 AM to review the
13 supervised visitation order.
- 14 h. There is a hearing currently set for Thursday, 7/9/2026 at 9:00 AM on Father's Order to
15 Show Cause Re: Contempt.

16 3) Related Case No. FDV-25-818708

- 17 a. On 6/16/2026, in related Case No. FDV-25-818708 the Court granted Mother a two-year
18 restraining order protecting Mother and the parties' two children against Father's mother
19 (i.e., Mother's mother-in-law).

20 4) Father's Request for Order filed 2/10/2026

- 21 a. On for hearing is Father's Request for Order filed 2/10/2026 asking the Court to order
22 Mother to serve her preliminary financial disclosures and to pay Father temporary
23 guideline spousal support. Father also asks the Court to award sanctions to him under
24 Family Code section 2107.
- 25 b. On 2/24/2026, Mother filed an Income and Expense Declaration. Mother states she is 33
26 years old and works 38.5 hours per week as a preschool teacher. Mother states that she
27 earns on average \$4,838 per month through her preschool teaching position and \$436 per
28 month through "gig work through SF Sketchfest." Mother reports that her monthly
29 expenses total \$8,454, which includes \$2,800 in rent and \$2,400 in childcare. Mother

1 states she has \$3,764 in cash savings and no other assets. Mother owes \$25,977 in credit
2 card debt and \$40,000 in student loan debt.

3 c. On 2/24/2026, Mother filed a Declaration Regarding Service of Preliminary Declaration
4 of Disclosure indicating that her preliminary financial disclosures were mailed to Father
5 on 2/24/2026.

6 d. On 3/9/2026, Mother filed a Responsive Declaration. Mother states she served her
7 preliminary financial disclosures on 2/24/2026 and that Father's request related to this
8 issue is moot. Mother states she is currently facing eviction and cannot afford to pay
9 sanctions. Mother states she cannot afford to pay any amount in spousal support to Father
10 and so spousal support should be set at \$0. In the alternative, Mother asks the Court to
11 impute Father with full-time minimum wage income, order Father to seek work, and
12 award Mother child support. Mother states that during their marriage, Father's mother
13 gave him \$5,000 per month for the family's expenses. Mother states these payments were
14 a gift and contrary to Father's claim that he owes his mother \$238,778, there was never
15 any discussion in their household about having to pay Father's mother back. Mother
16 states that after she was granted a Temporary Restraining Order which required Father to
17 vacate their home, Mother cannot afford the \$2,800 per month rent on her preschool
18 teacher income of \$4,753 per month, which is why she and the parties' sons are being
19 evicted. Mother also states she is going farther into debt each month. Mother states Father
20 is fully capable of working even though he is deaf. Mother states Father was previously a
21 chef and worked in a bakery in 2019. Mother also states Father took computer coding
22 classes during their marriage and claimed at a hearing on 2/18/2026 that he is in a design
23 training program.

24 e. On 3/20/2026, Mother filed a Statement of Support Calculations. Mother's proposed
25 support calculation is based upon imputed wage income of \$2,770 per month to Father
26 and \$2,000 per month in nontaxable gifts from Father's mother. Mother input a monthly
27 salary of \$4,838 for herself. This results in guideline spousal support of \$0 and guideline
28 child support of \$1,705 per month, payable by Father.

1 f. On 6/10/2026, Father filed an Income and Expense Declaration. Father states he is 39
2 years old and has been unemployed since 2019. Father states he is “actively seeking
3 employment.” Father states he has completed 3 years of college and he wrote “pending”
4 next to “degree(s) obtained.” Father states he receives \$1,000 per month in income
5 (source unspecified). Father also states that his monthly expenses total \$1,000 from rent
6 and that this \$1,000 is “paid by others.” Father states he has \$0 in assets. Father lists no
7 debts.

8 g. Father did not file a Reply Declaration to Mother’s Responsive Declaration.

9 5) Mother’s Request for Order filed 4/30/2026

10 a. Also on for hearing is Mother’s Request for Order filed 4/30/2026 seeking guideline
11 child support and an order requiring Father to seek work.

12 b. On 6/10/2026, Father filed a Responsive Declaration stating that he would consent to a
13 guideline child support order to commence “at start of [Father]’s employment.” Father
14 also states that he consents to a “standard Seek Work order which is five applications per
15 week and presenting his logs to Respondent’s attorney on the first day of each month.”
16 Father states he is currently unemployed but is actively working on his architecture
17 degree and expects to be completed within one year. Father states that his mother is
18 currently assisting him financially by providing him with \$1,000 per month for rent and
19 an additional \$1,000 per month for food. Father states that on 10/7/2025, Father’s mother
20 informed the parties that a change in her financial circumstances would cause any
21 financial support to the parties’ family to cease. Father states Mother currently resides
22 with her boyfriend and his parents and she does not pay rent

23 c. On 6/25/2026, Mother filed a Reply Declaration. Mother states, “Petitioner is an
24 unemployed adult with ordinary living expenses. He maintains a cellular phone, uses
25 transportation, and has retained private legal counsel. It is not credible that he incurs no
26 monthly expenses whatsoever while his mother only pays \$2,000 a month for his rent and
27 food, which is what he states on his IED. The fact that his declaration reflects zero
28 expenses indicates either that the declaration is inaccurate or that another person, likely
29 his mother, is paying all of his living expenses on his behalf. I do not believe that \$2,000

1 covers ALL of his expenses for the month.” Mother states that to date Father has not
2 provided any documentation to support his claim that he is enrolled in or attending any
3 educational program, despite her request for this information through counsel. Mother
4 also states that the fact that Father is enrolled in an educational program does not excuse
5 him from maintaining employment. Mother reiterates her request that the Court impute
6 Father with full-time minimum wage income. Mother states that she was recently evicted
7 from her prior residence and she is currently living with her sister while she searches for
8 affordable housing and housing assistance programs. Mother states, “A substantial
9 portion of my income is devoted to maintaining medical, dental, and other insurance
10 benefits for myself and our children so that they remain covered and receive necessary
11 care. In addition, I continue to make payments on debts incurred during the marriage.
12 Those monthly debt obligations recently increased from approximately \$500 per month
13 to approximately \$1,000 per month.”

14 d. On 6/25/2026, Mother filed a second Statement of Support Calculations which contains a
15 support calculation using the same inputs as used in her 3/20/2026 Statement of Support
16 Calculations.

17 e. On 6/26/2026, Father filed a Declaration of Support Calculations. Father states that he is
18 non-verbal and deaf. Father asks the Court to calculate support based on \$0 for Father.
19 Father requests that support be awarded retroactively to 10/16/2025 when Father filed his
20 Petition for Dissolution.

21 f. On 6/26/2026, Father filed a Memorandum of Points and Authorities supporting his
22 request for support retroactive to the date he filed his Petition for Dissolution.

23 **B. Findings and Order**

- 24 1) The Court finds that Mother has already served her preliminary financial disclosures and that
25 Father’s request for an order compelling her to do so is moot.
- 26 2) Father’s request for sanctions under Family Code section 2107 is denied. The Court finds that
27 Mother cannot afford to pay any amount in sanctions to Father.
- 28 3) The Court finds good cause to grant Mother’s unopposed request to compel Father to seek work.
29 Effectively immediately, Father shall abide by the attached Work Search Order.

1 4) Mother's request to impute Father with full-time minimum wage income is denied at this time.
2 However, the Court will consider imputing Father with income at the next hearing date, as set
3 forth below.

4 5) Father's request for temporary spousal support and child support retroactive to the date he filed
5 his Petition for Dissolution is denied.

6 6) The Court was unable to finalize a guideline support calculation because Mother's Income and
7 Expense Declaration filed 2/24/2026 lacks paystub attachments. However, as shown in the
8 XSpouse calculation attached hereto and incorporated herein, if the Court were to accept Father's
9 proposed XSpouse inputs for Mother, the Court finds that guideline child support would be \$770
10 per month (payable by Father) and guideline temporary spousal support would be \$266 per month
11 (payable by Mother).

12 7) Notwithstanding the foregoing, the Court finds good cause to award below guideline temporary
13 spousal support and below guideline child support. The Court hereby sets temporary spousal
14 support and child support at \$0 effective 2/10/2026 (the date Father filed his Request for Order)
15 for the following reasons. Father is receiving \$2,000 per month in financial support from his
16 mother. The Court finds that Father does not have the ability to pay any support to Mother at this
17 time as \$1,000 per month of this amount is used to pay rent and \$1,000 per month of this amount
18 is used to cover Father's personal expenses. Mother on the other hand, is making more than
19 \$2,000 per month, but she has the children in her care 98% of the time and she is the children's
20 sole financial provider. The Court finds that Mother does not have the ability to pay any amount
21 in support to Father. The Court also notes Mother has alleged that Father committed domestic
22 violence against her. Mother's Request for a DVRO against Father is still under submission. The
23 Court makes no findings at this time regarding the domestic violence allegations for purposes of
24 support. Depending upon the disposition of Mother's pending DVRO request, the Court will
25 consider the applicability of Family Code section 4320(i) at the review hearing.

26 8) A review hearing is set for **Tuesday, 11/17/2026 at 9:00 AM in Dept. 404** to review Father's
27 work search efforts and to consider making a new child and temporary spousal support order. The
28 Court is inclined to impute to Father full-time minimum wage income at the next hearing date and
29 to recalculate child and temporary spousal support. No later than 20 calendar days prior to the

1 next hearing date, both parties shall file and serve updated Income and Expense Declarations. No
2 later than 10 calendar days prior to the next hearing date, both parties shall file and serve
3 declarations providing any material updates to the Court as well as proposed Statements of
4 Support Calculation. In their declarations, both parties must explain to the Court where they are
5 currently living and how they are paying for their living expenses.

6 9) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	2	2026				
% time with NCP	2.00 %	0.00 %	GUIDELINE		Comb. net spendable	5624	5624
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	3 *			Father		
Wages+salary	0	5338	Father	2000	Payment cost/benefit	-504	-504
Self-employed income	0	0	Mother	3624	Net spendable income	1496	1496
Other taxable income	0	436	Total	5624	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	27%	27%
Other nontaxable income	2000	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	-770	Total taxes	0	0
401(k) employee contrib	0	260	S.Clara SS	266	Dep. exemption value	0	0
Adjustments to income	0	0	Total	-504	# withholding allowances	0	0
SS paid prev marriage	0	0	CS range: -526--770		Net wage paycheck	0	0
CS paid prev marriage	0	0			Mother		
Health insurance	0	1563			Payment cost/benefit	504	504
Other medical expense	0	165			Net spendable income	4128	4128
Property tax expense	0	0	Proposed		Change from guideline	0	0
Ded interest expense	0	0	Tactic 9		% of combined spendable	73%	73%
Charitable contributions	0	0			% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	-770	Total taxes	502	502
Qual bus income ded	0	0	SS	266	Dep. exemption value	0	0
Required union dues	0	85	Total	-504	# withholding allowances	0	0
Mandatory retirement	0	0	Saving	0	Net wage paycheck	4068	4068
Hardship deduction	0 *	0 *	Releases	0			
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

Mother pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	1 - 99	0	0	0	Father	770	Father	770	Father
	2 - 98	0	0	0	Father	288	Father	288	Father
	2 - 98	0	0	0	Father	482	Father	482	Father

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, state bar number, and address): Prepared by the Court TELEPHONE NO.: FAX NO.: E-MAIL ADDRESS: ATTORNEY FOR (Name):	For court use only
Superior Court of California County of San Francisco 400 McAllister Street San Francisco, CA 94102	
Petitioner/Plaintiff: Casey Noelle Nuckols Floriani Respondent/Defendant: Niccolo Toru Floriani Other Parent:	
WORK SEARCH ORDER	CASE NUMBER: FDV-25-818707

1. ☐ Petitioner ☒ Respondent ☐ Other Parent is ordered to look for work, **and to:**
- ☒ spend a *minimum* of 25 **hours per week in job search related activities.**
- ☒ apply for a *minimum* of 5 **jobs per week.**
- ☐ No more than applications can be done online.
- ☐ Other conditions:

You are responsible for maintaining (1) a *written log* of your weekly activities (see local form: weekly search log) and (2) *copies* of all paperwork/correspondence related to your job search (letters, job applications sent, responses, contact information / business cards, etc.)

Activities should include *most or all* of the following:

- A. Networking with personal and professional contacts
- B. Interviewing for information, advice and job leads ("informational interviewing")
- C. Reviewing prior contacts and following up regularly
- D. Conducting computer research (company, industry, job/current openings)

Examples *include*:

- Company-specific websites
- *Google* searches for relevant industry information
- www.monster.com / www.craigslist.org
- E. Searching local newspaper job ads for relevant openings
- F. Responding to and following up on advertised job openings (online, in-person, newspaper)

- G. Job search-related communication (resume revision, cover letters, following up on job leads, e-mail communications, thank-you notes, etc.)
- H. Contacting/working with placement agencies
- I. Contacting/attending alumni groups
- J.. Attending career counseling / job coaching sessions
- K. Participating in job search clubs and/or job search skills training
- L. Participating in professional organizations
- M. Job skills training (computer/vocational classes relevant to job objective)
- N. Preparing for and attending job interviews
- O. Contacting a union, obtain placement on list, attend roll calls, and track placement on list.

2. You must serve a copy of the logs once per month and within the first 10 days of each month, starting 8/1/2026, to:

- ☒ Opposing counsel or party
- ☐ Department of Child Support Services (DCSS)
617 Mission Street, San Francisco, CA 94102
- ☐

3. You must bring the signed, original weekly logs and all paperwork/correspondence related to your job search to court with you. Copies of all paperwork/correspondence related to your job search must be available for review if requested by opposing party within 10 days of request.

4. If you find work before the next court date, you must notify opposing party and counsel (if any) and (if checked) ☐ the Department of Child Support Services (DCSS), in writing *within ten days*, providing name, address, and telephone number of employer, salary or wage level, job title, copies of any employment contract, hiring letter, or employment agreement, and first month's paycheck stub upon receipt.

5. The court reserves jurisdiction to retroactively modify support to the earliest date permitted by law, and to impose sanctions for any failure to comply with this order, including imputing income.

☐ **SPOUSAL SUPPORT:** It is the goal of this state that each party will make reasonable good faith efforts to become self-supporting as provided in Family Code §4320. The failure to make reasonable good faith efforts may be one of the factors considered by the court as a basis for modifying or terminating spousal or partner support.

☐ The parties are ordered to return to court for review on _____, at _____, in Dept. _____.

Date: _____
Judge/Commissioner

(This can be completed by hand or re-created in a word processing table or database spreadsheet)

NAME: Floriani v. Floriani CASE # FDV - 25 - 818707 WEEK OF:

DATE	ACTIVITY	Contact/Organization (include name, title and phone number)	RESULTS	Follow Up Steps (describe what you're going to do next and when)	Time Spent (start/end time)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(signature) _____ (date)